LAF YOMI

Bekhorot 42 · October 30, 2026

ON TODAY'S DAF

Bekhorot 42: Rav Chisda's tumtum-as-safek under siege — every baraita lists the tumtum as excluded, and each time the Gemara deletes it. Then temurah exclusions, R' Elazar on birds, and 42b's urine tests.

סמי מכאן טומטום · RAV CHISDA'S DELETE KEY



1. Rav Chisda opens: everybody agrees a tumtum is a safek, not a beriah in its own right. Then the Gemara brings baraita after baraita — erech, shelamim, olah, birds, temurah — and every one lists the tumtum as excluded.

“Every time, the same answer: סמי מכאן טומטום — just delete the tumtum from the list. By the fifth deletion, Rav Chisda's defense has become a reflex: if the list disagrees with you, edit the list.”

— Rabbi Elefant

In the daf: Bekhorot 42a · סמי מכאן טומטום — delete the tumtum from the list · Hear it in the shiur: Rabbi Moshe Elefant · 3:01

מחיר כלב · THE TCHEBINER RAV'S DOG VORT



2. The baraita lists animals that can never be korbanot, including one given as מחיר כלב — payment for a dog. Elefant stops to ask: why a dog, of all the non-kosher animals, to teach this rule?

“The Tchebiner Rav's vort: a dog is famously loyal to its master — but also עז פנים, brazen, not refined. One good trait cannot cover a bad one, so the dog becomes the Torah's poster animal for a tainted price. Loyalty: excellent. Manners: disqualifying.”

— Rabbi Elefant

In the daf: Bekhorot 42a · מחיר כלב — the price of a dog · Hear it in the shiur: Rabbi Moshe Elefant · 10:04

בית הבליעה · YOUR THROAT IS A RESHUT HAYACHID



3. A disqualified bird killed by melikah counts as a nevelah, and nevelah of a bird is מטמא בגדים בבית הבליעה — it makes your clothes tamei when you swallow it. Rav Elyashiv asks: the tumtum bird is a safek, and safek tumah in a public domain is tahor — and the Beit HaMikdash is a public domain!

“Answer: the tumah is not in the public domain at all — it is in your throat. And your throat, says Rav Elyashiv, is a reshut hayachid. Your windpipe: private property, strict zoning.”

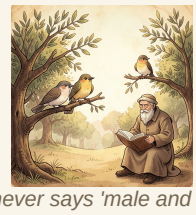
— Rabbi Elefant

In the daf: Bekhorot 42a · מטמא בגדים בבית הבליעה — impurity in the throat · Hear it in the shiur: Rabbi Moshe Elefant · 17:00

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עוף · THE RADBAZ'S BIRD-DATING TEST



4. R' Elazar says birds are different: the Torah never says 'male and female' about birds, so a tumtum or androgynos bird can be a korban. The mefarshim ask: how would you even know a bird is a tumtum?

“The Radbaz: if a bird doesn't mate with any other birds, it's a tumtum. If it mates — playing either the male role or the female role — it's an androgynos. Ornithology by dating life.”

— Rabbi Elefant

In the daf: Bekhorot 42a · R' Elazar on birds — the Radbaz's mating test · Hear it in the shiur: Rabbi Moshe Elefant · 16:09

חמישה · THE COUNT MUST BE PRESERVED



5. R' Elazar's baraita: five animals neither become holy nor make holy through temurah — tereifah, kilayim, yotzei dofen, tumtum, androgynos. Rav Chisda wants to delete the tumtum from this list too.

“Problem: the baraita says five, and deleting the tumtum leaves four. Solution: אפיק טומטום ועייל יתום — take out the tumtum, bring in the orphan, an animal whose mother died in childbirth. The count must be preserved, even if it means signing a substitute off the bench.”

— Rabbi Elefant

In the daf: Bekhorot 42a · חמישה לא קדושים — five, minus one, plus an orphan · Hear it in the shiur: Rabbi Moshe Elefant · 20:11

הואיל ואישתני אישתני · ONE GLITCH, SUSPECT THEM ALL



6. Once the Gemara accepts that a tumtum urinating במקום נקבות might still be suspect — maybe its male organ bent around — it generalizes: הואיל ואישתני אישתני, once something has changed, suspect further changes. So the tumtum's wife gets only chalitza, not yibum — maybe he is also a seris chamah.

“Elefant quotes the poskim: does הואיל ואישתני אישתני apply outside the body too? The Maharsham wonders about a man who pays his debts early — the Gemara assumes people don't — do all the chazakot about him fall away? One anomaly, and suddenly even punctuality is suspicious.”

— Rabbi Elefant

In the daf: Bekhorot 42b · הואיל ואישתני אישתני — once changed, suspect more change · Hear it in the shiur: Rabbi Moshe Elefant · 42:56